

		sufficient reasons for requesting to be relieved as counsel for Clients. The motions are granted. The court will continue trial in this matter to November 30, 2026, in order to permit Clients, which include two corporate entities, time to find new counsel. The court orders Attorneys to turn over the complete case file to Clients no later than September 14, 2026, and to provide a list of pending deadlines as requested by Clients in their opposition. The court notes the order relieving counsel shall not be effective until Attorneys file proof of service of the ruling on Clients. Until such time, Attorneys shall remain counsel of record. Attorneys are ordered to give notice of this ruling.
202	<i>L. vs. DOE 1</i>	The motion for judgment on the pleadings filed by Saddleback Valley Unified School District (District) as to the cause of action for negligence in the First Amended Complaint (FAC) filed by plaintiff A.L. is DENIED, as set forth herein. A motion for judgment on the pleadings may be made, and granted, on the same grounds as a general demurrer. (<i>Stoops v. Abbassi</i> (2002) 100 Cal.App.4th 644, 650) As with a demurrer, the grounds for judgment on the pleadings must appear on the face of the complaint or be based on facts that the court may judicially notice. (<i>Burnett v. Chimney Sweep</i> (2004) 123 Cal.App.4th 1057, 1063) In the third cause of action, plaintiff alleges District employees had actual notice the plaintiff was being sexually abused by her teacher and did nothing to protect her. (FAC ¶67) Plaintiff further alleges examples of grooming and other interactions of

		which the District employees were aware and that the employees did nothing. This cause of action is sufficiently pled. (<i>C.A. v. William S. Hart Union High Sch. Dist.</i> (2012) 53 Cal. 4th 861, 865–66 [“If a supervisory or administrative employee of the school district is proven to have breached that duty by negligently exposing plaintiff to a foreseeable danger of molestation by his guidance counselor, resulting in his injuries, and assuming no immunity provision applies, liability falls on the school district under section 815.2.”].) Accordingly, the motion is DENIED. Plaintiff shall give notice.
204	<i>Hamilton vs. 712 Financial Services LLC</i>	The demurrer of defendants 712 Financial Services LLC, Richard D. Niemi, Kathleen N. Niemi, Bruce Hammett, Judith Hammett, Michael Jones, Darcy Cohen Jones, the Lighthouse II LLC, Shawn Reynolds, Janelle Reynolds, Richard W. Merritt Jr., and Britian L. Merritt (collectively, Moving Defendants) directed to the complaint of plaintiff Scott Peter Hamilton (Plaintiff) is SUSTAINED IN PART with 20 days leave to amend and OVERRULED IN PART, as set forth below. <u>First Cause of Action for Wrongful Foreclosure</u> “The elements of the tort of wrongful foreclosure are: ‘“(1) the trustee or mortgagee caused an illegal, fraudulent, or willfully oppressive sale of real property pursuant to a power of sale in a mortgage or deed of trust; (2) the party attacking the sale (usually but not always the trustor or mortgagor) was prejudiced or harmed; and (3) in cases where the trustor or mortgagor challenges the sale, the trustor or mortgagor tendered the amount of the secured indebtedness or was excused from tendering”’; and (4) ‘“no breach of condition or